

Sapini matter: manual setup guide

Everything Cedar would have put into Clio for the **Sapini** matter, so you can enter it by hand if the app is down. Type every value exactly as shown. Dates already assume you are doing this on **Friday, October 2, 2026**.

16

Custom fields

10

Contacts

42

Notes

69

Communications

14

Tasks

17

Calendar entries

5

Expenses

15

Documents

Order of work

1. **Step 1.** Create the eight matter stages.
2. **Step 2.** Create the sixteen custom fields.
3. **Step 3.** Create the client and the other contacts.
4. **Step 4.** Create the matter and fill in its custom field values.
5. **Step 5.** Create the nine document folders and upload the documents.
6. **Step 6.** Notes, then communications, tasks, calendar entries and expenses.

Tips

1. Split the work: one person per section. Every row is numbered and has a box to tick.
2. Start the document uploads early. Two files are 34 MB and 42 MB.
3. Copy and paste long text rather than retyping it.
4. "You (firm user)" means your own Clio login.
5. Documents are in the **Sapini documents** folder next to this PDF, already sorted into the Clio folder each one belongs in.

STEP 1 Matter stages

In Clio: **Settings** → **Matters** → **Matter stages**. Choose the **Personal Injury** practice area, then add these eight stages in this order, spelled exactly like this.

1. Intake	2. Treatment	3. Demand	4. Negotiation	5. Litigation	6. Trial	7. Disbursement	8. Closed
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Sapini sits at **Litigation** (highlighted).

Most common mistake: creating the stages under a different practice area. They must sit under **Personal Injury**, or the matter cannot be given its stage.

STEP 2 Custom fields, and Sapini's value for each

Create these in **Settings** → **Custom fields** → **Matters** with the name and type exactly as shown (no field set needed). Fill in the Sapini values when you create the matter in step 4.

#	FIELD NAME	FIELD TYPE	SAPINI VALUE
☐ F1	Date of Incident	Date	04/23/2023
☐ F2	Accident Location	Text line	Cedar Street at its intersection with Garden Street, New Rochelle, Westchester County, NY
☐ F3	Case Summary	Text area	Sideswiped by a Metro-North utility vehicle on Cedar Street, New Rochelle. Both shoulders, both knees, and a head injury.
☐ F4	Insurance Carrier	Text line	Metro-North Commuter Railroad, SELF-INSURED. Claims administered by Claims Service Bureau. Client's own no-fault: Progressive Insurance Company, P.O. Box 2930, Clinton, IA 52733.
☐ F5	Claim Number	Text line	SIR068120 (Metro-North / Claims Service Bureau)
☐ F6	Policy Limits	Text area	Defendant liability: \$100,000 / \$300,000 Client UM/UIM: \$25,000 / \$50,000 No-fault: \$50,000
☐ F7	Policy Limits Confirmed	Checkbox	☒ Checked
☐ F8	Estimated Case Value	Currency	\$375,000.00
☐ F9	Case Value Rationale	Text area	Economics alone come to \$332,400: \$118,400 in specials and \$214,000 claimed in wage loss, and the second shoulder surgery is still recommended with no date. The case is worth more than the coverage. We are capped at the \$100,000 defendant limit and the Medicaid lien of \$22,180.00 comes off whatever we recover.
☐ F10	Medical Specials To Date	Currency	\$118,400.00
☐ F11	Wage Loss Claimed	Text area	\$214,000.00 claimed to date. Financial advisor, Northwestern Mutual, 875 Third Avenue, New York NY 10022. Commission-only compensation, out of work since DOI and ongoing. Figure is from the client's own 2022 1099; no economic expert retained.
☐ F12	Liability Assessment	Text area	Contested on two independent levels, neither investigated.
☐ F13	Treatment Status	Text area	Active and ongoing, over three years post-loss. Never discharged, no MMI declared.

#	FIELD NAME	FIELD TYPE	SAPINI VALUE
☐ F14	Health Insurance or Lien Holder	Text area	New York State Medicaid lien, \$22,180.00 asserted. Progressive no-fault: \$50,000 basic economic loss exhausted, which under Insurance Law 5104(a) is not recoverable from the tortfeasor. Social Security Disability claim filed and pending. Defendants pleaded CPLR 4545 collateral source.
☐ F15	Prior Related Injuries	Text area	Denied by the client, contradicted by his own paperwork.
☐ F16	HIPAA Authorization Received	Checkbox	☒ Checked

STEP 3

Contacts

Create each contact, then link it to the matter under **Related contacts** with the relationship shown. The client is the matter's client, not a related contact.

#	TYPE	NAME	COMPANY / TITLE	EMAIL	PHONE	ADDRESS	RELATIONSHIP TO THE MATTER	
☐	P1	Person	Mr. Justin Sapini Date of birth 12/21/1995	Northwestern Mutual	jsapini.tx@mailbox.test	(845) 358-2214	20510 Cypress Plaza Parkway, Apt. 3211, Cypress, TX 77433	Client
☐	P2	Person	Anthony Ferrara			12 Daisy Farm Drive, Brookfield, CT 06804	Adverse driver	
☐	P3	Company	Metro-North Commuter Railroad		claims@mnr-railroad.test	420 Lexington Avenue, New York, NY 10170	Adverse party, self- insured public authority	
☐	P4	Company	Claims Service Bureau		adjusters@claimsservicebureau.test	c/o D&D Associates, PO Box 9150, Garden City, NY 11530	Third-party claims administrator for Metro-North	
☐	P5	Company	Progressive Insurance Company		nofault.ny@progressive-claims.test	P.O. Box 2930, Clinton, IA 52733	No-fault carrier, client's own policy	
☐	P6	Company	Montefiore Nyack Hospital		him@montefiorenyack.test	160 N. Midland Avenue, Nyack, NY 10960	Hospital, emergency care DOI + 1	
☐	P7	Company	McCulloch Orthopaedic Surgical Services, PLLC		records@mccullochortho.test	3225 Westchester Avenue, Bronx, NY 10451	Treating provider, orthopaedic surgery	
☐	P8	Person	David Capiola	Dr. / McCulloch Orthopaedic Surgical Services, PLLC	dcapiola@mccullochortho.test	451 Main Street, 2nd Floor, New Rochelle, NY 10801	Treating orthopaedic surgeon, left shoulder arthroscopy	
☐	P9	Company	Advanced Rockland Chiropractic Offices, P.C.		records@advancedrocklandchiro.test	265 N. Main Street, Suite A, Spring Valley, NY 10977	Treating provider, chiropractic (Kevin M. Haggerty, D.C.)	

#	TYPE	NAME	COMPANY / TITLE	EMAIL	PHONE	ADDRESS	RELATIONSHIP TO THE MATTER
☐ P10	Company	SportsCare Physical Therapy of New York		records@sportscareny.test		410 Airport Executive Park, Nanuet, NY 10954	Treating provider, physical therapy

STEP 4 The matter

Create one new matter with these values, then fill in the sixteen custom fields from step 2.

Client	Justin Sapini (contact P1)
Matter description	Sapini, Justin — MVA (Cedar St & Garden St, New Rochelle)
Practice area	Personal Injury
Matter stage	Litigation
Status	Open
Open date	05/07/2023
Statute of limitations date	04/22/2026
Responsible / originating attorney	Leave as you, or whoever is on the account

STEP 5 Document folders and documents

On the matter's **Documents** tab, create these nine folders, including the two that stay empty. Then upload each file into its folder and **keep the file name exactly as it is**. If your upload dialog has a received date, use the one shown.

01 Intake and Retainer 02 Pleadings 03 Discovery 04 Medical Records 05 Medical Bills and Liens 06 Correspondence 07 Insurance 08 Experts 09 Settlement

How the file names read: 04-medical-records__doc-19__records-bundle-part1-haggerty-imaging.pdf = folder **04**, court docket document **19**, then what it is. "created" in place of a docket number means the firm made it (HIPAA form, photo ID).

#	CLIO FOLDER	FILE NAME (UPLOAD AS IS)	SIZE	RECEIVED DATE
☐ D1	01 Intake and Retainer	01-intake__created__hipaa-authorization.pdf	3 KB	05/14/2023

#	CLIO FOLDER	FILE NAME (UPLOAD AS IS)	SIZE	RECEIVED DATE
☐ D2	01 Intake and Retainer	01-intake__created__photo-id.pdf	45 KB	05/07/2023
☐ D3	02 Pleadings	02-pleadings__doc-01__summons-complaint.pdf	1.0 MB	03/08/2024
☐ D4	02 Pleadings	02-pleadings__doc-05__verified-answer-demands.pdf	0.7 MB	04/17/2024
☐ D5	02 Pleadings	02-pleadings__doc-07__bill-of-particulars.pdf	0.5 MB	05/27/2024
☐ D6	02 Pleadings	02-pleadings__doc-41__bop-affirmative-defenses.pdf	0.1 MB	06/26/2024
☐ D7	03 Discovery	03-discovery__doc-08__response-discovery-demands.pdf	0.4 MB	05/07/2024
☐ D8	03 Discovery	03-discovery__doc-40__defendants-response-demand.pdf	1.1 MB	11/03/2024
☐ D9	03 Discovery	03-discovery__doc-43__subpoena-kyle-pullano.pdf	0.2 MB	01/02/2025
☐ D10	04 Medical Records	04-medical-records__doc-19__records-bundle-part1-haggerty-imaging.pdf	40.2 MB	03/23/2025
☐ D11	05 Medical Bills and Liens	05-medical-bills__doc-20__records-and-bills-part2-pt-ortho-er-operative.pdf	32.6 MB	03/23/2025
☐ D12	06 Correspondence	06-correspondence__doc-12__letter-to-judge.pdf	0.1 MB	09/24/2024
☐ D13	08 Experts	08-experts__doc-47__radiology-review-katzman.pdf	0.7 MB	09/22/2026
☐ D14	08 Experts	08-experts__doc-55__expert-exchange-neuro-tsao.pdf	2.7 MB	09/20/2026
☐ D15	08 Experts	08-experts__doc-56__ime-orthopedic-hostin.pdf	0.7 MB	09/14/2026

STEP 6a Notes (42)

Matter → **Notes** → New note. Set the date, subject and detail exactly as shown.

#	DATE	SUBJECT	DETAIL
☐ N1	05/07/2023	Intake summary	Met with Justin Sapini in person. Mechanism as he tells it: he was southbound on Cedar Street, New Rochelle, at about 8:30 a.m. in his 2012 VW GLI (NY plate KYR1393) when a Metro-North utility vehicle turning into the Metro-North facility contacted his driver-side door and front fender. No ambulance, drove himself home, presented to Montefiore Nyack ER the next morning with neck, upper back and left shoulder pain and lightheadedness. CT head and cervical both negative. Injuries claimed: cervical and lumbar spine, both shoulders, both knees. Currently treating with Haggerty (chiropractic) and Dr. Capiola (orthopaedics), with imaging through Mid Rockland. Employment: financial advisor at Northwestern Mutual, commission only, out of work since the loss. Says he has his 2022 1099 and can send commission history. Adverse vehicle is owned by Metro-North, which is a public authority and self-insured, so a Presentation of Claim under Public Authorities Law 1276(1) will be needed with thirty days elapsing before suit. Client says he has twenty-two photographs of the scene on his phone. Denies any prior injuries. Retainer and HIPAA going out today. (Note taken by S. Alvarez, paralegal.)
☐ N2	05/09/2023	File opened and claim set up	Matter opened. Retainer and HIPAA signed. Client photographed his own paperwork and emailed it in before the appointment, which is how we got the claim number this early. The defendant is Metro-North, a public authority, which changes everything about the timetable: a notice of claim and the shortened period against a public benefit corporation, not the ordinary three years. Self-insured with no stated ceiling, so there is no declarations page to obtain and no limit to confirm. Valuation cannot lean on a policy limit.

#	DATE	SUBJECT	DETAIL
☐ N3	05/14/2023	Coverage note: Metro-North is self-insured	Metro-North Commuter Railroad is self-insured. There is no carrier and no declarations page to request, which means folder 07 will stay empty on this file and the usual limits question has no document behind it. Claims are administered by Claims Service Bureau, c/o D&D Associates, Garden City. Claim number SIR068120. Ferrara personally carries auto coverage identified at \$100,000 / \$300,000. If Metro-North comes out of the case on scope of employment, that policy is the entire recovery. No statement of exposure has been requested from the authority and none has been volunteered.
☐ N4	05/18/2023	Treatment commenced	Client started treating: chiropractic at Advanced Rockland three times weekly, physical therapy at SportsCare, and an orthopaedic consultation with Dr. Capiola at McCulloch for the left shoulder. Imaging referrals made at the first visit. He is a commission salesman, so the wage claim will have to be built from commission statements rather than a salary, and it will be argued.
☐ N5	05/23/2023	Mechanism: the client has given three different accounts	Reviewing the paperwork the client handed over against what he told us at intake, there are three versions of this collision on file and two of them are his: 1. His claim paperwork: the Metro-North vehicle merged into his lane and struck him. 2. At intake, described at one point as both vehicles merging and his own vehicle striking the other. 3. In an earlier written account: sideswiped by a truck, after which he struck the sidewalk. No police accident report has been obtained. On a sideswipe there is no presumption of fault in either direction, so the account we adopt is the case. He says he has twenty-two photographs. Nobody has asked him for them.
☐ N6	05/31/2023	Prior injury discrepancy: left ankle	Client answered "none" to prior injuries at intake. His own document stack contains X-ray reports of the left ankle and left foot dated 5 October 2011, Kenneth Blumberg M.D., impression small dorsal avulsion fracture of the anterior talus, plus a chest film from 10 September 2018. Separately, he has complained of left ankle pain that he attributes to this accident, while no left ankle injury is claimed anywhere in our paperwork. That is three inconsistent positions on one ankle and all three are ours. Needs resolving before any demand is drafted, and certainly before a deposition.

#	DATE	SUBJECT	DETAIL
☐ N7	06/07/2023	Scope of employment is the whole case	Ferrara was pulling into a Metro-North facility at 8:30 a.m. in a Metro-North vehicle with Metro-North badging ("We Aim High to Drive Safe", 1 800 773-1753, unit E2858D, PA plate ZMP3277). If he was on duty, Metro-North answers for him and the case is worth what the injuries are worth. If he was on a break, vicarious liability fails and all that is left against the authority is negligent entrustment, which is a much harder theory. Everything about the value of this file sits on that fact. Kyle Pullano at Metro-North has been identified as the person who can answer it. He has not been contacted.
☐ N8	07/12/2023	Left shoulder surgery authorised	Dr. Capiola is proceeding with a left shoulder labral repair. Pre-operative consultation set. Surgery to be performed at New Horizon Surgical Center, Paterson NJ. MRI supporting it: partial tear of the posterior inferior labrum at the 8 to 9 o'clock position and a low-grade interstitial tear of the posterior fibres of the infraspinatus. The same study also reports hypoplasia of the posterior inferior glenoid, which is developmental rather than traumatic. Expect the defence to lean on it.
☐ N9	08/01/2023	Post-operative: left shoulder arthroscopy performed	Left shoulder examination under anaesthesia and arthroscopy performed by Dr. Capiola at New Horizon Surgical Center at DOI + 94: posterior labral repair with a 2.99mm BioComposite PushLock anchor and a cinch stitch, complete synovectomy, lysis of adhesions, subacromial decompression, and extensive debridement of the biceps tendon, a partial rotator cuff tear and a cartilage defect. Post-operative diagnosis: significant posterior labral tear, synovitis, adhesions, impingement, partial biceps tendon tear, partial rotator cuff tear, cartilage defect. Operative report requested this week.
☐ N10	08/31/2023	Records received: McCulloch Orthopaedic (Dr. Capiola)	Orthopaedic file received, including the operative report. Contains the initial examination at DOI + 24, four referral forms, and follow-ups with Nicole Kosuda, P.A. Filed to 04 Medical Records.

#	DATE	SUBJECT	DETAIL
☐ N11	09/20/2023	Imaging summary: ten studies	Catalogued the imaging obtained so far, all through Hudson Valley Radiology / Mid Rockland: - Cervical MRI (DOI + 15): straightening of the lordosis, shallow bulge at C5-6 flattening the left ventral margin of the canal. - Lumbar MRI (DOI + 15): L5-S1 bulge with lateral predominance, narrowing the lateral recesses and inferior foramina bilaterally. - Both shoulders (DOI + 31): bilateral labral and infrapinatus tears. - Both knees (DOI + 71): horizontal undersurface tear of the posterior horn of the medial meniscus, prepatellar soft tissue oedema on the left. - Brain MRI with DTI and volumetric analysis (DOI + 107): 2 of 12 regions of interest and 1 of 6 white matter tracts abnormal, hemosiderin focus in the subcortical right parietal lobe. Reported positive predictive value for traumatic brain injury greater than 95%. Worth holding in mind: the CT head and CT cervical taken the day after the loss were both negative, so the head injury claim rests entirely on imaging taken 107 days later.
☐ N12	10/20/2023	Records received: Advanced Rockland Chiropractic (Haggerty)	Chiropractic file received: initial narrative, 52 dated SOAP visits, two re-examination narratives, ten work status reports and a letter of medical necessity for equipment. Covers DOI + 3 through DOI + 212. Filed to 04 Medical Records. Itemised billing still to come.
☐ N13	11/19/2023	Records received: SportsCare Physical Therapy (Ludena)	Physical therapy file received: initial examination at DOI + 67, twenty dated daily visits, a re-examination, and a discharge note at DOI + 144. One oddity worth noting: the discharge note is followed by daily treatment notes continuing for another 91 days. Either the discharge was never effective or the notes are misfiled. If the defence reads it as a discharge, the gap argument writes itself.
☐ N14	11/29/2023	Records collection: what we hold and what is missing	Three of the treating providers have produced in full: McCulloch Orthopaedic including the operative report, Advanced Rockland Chiropractic, and SportsCare Physical Therapy. Two have sent nothing at all despite repeated requests, which is why the specials figure is a running total and not a schedule. The emergency department chart from Montefiore Nyack is in, which covers the CT of the head and cervical spine on the day after the loss.

#	DATE	SUBJECT	DETAIL
☐ N15	01/08/2024	No-fault exhausted	Progressive confirms the \$50,000 basic economic loss under the client's own policy is exhausted. Treatment continues at reduced intensity, now billing through Medicaid. Under Insurance Law 5104(a) the exhausted no-fault is not recoverable from the tortfeasor, so our specials figure is a treatment-value number rather than the net third-party claim. Flag for whoever drafts the demand.
☐ N16	02/17/2024	Specials tally to date: \$118,400.00	Running total from eight of the ten providers: - Left shoulder arthroscopy, New Horizon Surgical Center: \$38,500.00 - Montefiore Nyack ER, day after the loss, CT head and cervical: \$9,087.00 - Imaging, ten studies: \$24,600.00 - EMG/NCV, four studies: \$6,200.00 - Chiropractic, Advanced Rockland, 96 visits: \$17,400.00 - Physical therapy, SportsCare, 74 sessions: \$14,900.00 - Orthopaedic, McCulloch / Dr. Capiola, 14 visits: \$4,850.00 - Physiatry and neurology, Abramov and Kwan: \$2,863.00 The chiropractic and PT ledgers are still being reconciled line by line against the CPT codes, so the two largest components are the two least certain. Two providers have sent nothing.
☐ N17	03/28/2024	Lien and collateral source position	New York State Medicaid lien asserted at \$22,180.00. Social Security Disability claim filed and pending. Defendants have pleaded CPLR 4545 collateral source. Between the Medicaid lien, the exhausted no-fault and a pending SSD award, the net to the client will look very different from the gross, and the client should hear that from us before he hears a number.
☐ N18	04/12/2024	Demand package served on Claims Service Bureau	Demand package served on Claims Service Bureau under claim SIR068120. Specials of \$118,400.00 from eight of the ten providers, wage loss of \$214,000.00 on the 2022 1099, the left shoulder arthroscopy and the TBI findings, with the Medicaid lien and the exhausted no-fault stated on the face of it. Served on the record we hold today. The chiropractic and physical therapy ledgers are open and both are named in the package as subject to revision.
☐ N19	04/29/2024	Adjuster response: negotiations opened	Claims Service Bureau acknowledges the demand and opens negotiations with an offer well under the defendant's \$100,000 limit. Their position is that liability is contested on mechanism, that the day-after CT scans were clean, and that the wage claim is unsupported by an expert. No counter served. Nothing here should be settled while treatment is open and the ledgers are unreconciled.

#	DATE	SUBJECT	DETAIL
☐ N20	05/27/2024	Second surgery recommended: right shoulder	Dr. Capiola recommends a right shoulder arthroscopy. Right shoulder MRI supports it: intermediate grade interstitial tear of the anterior half of the infraspinatus and a partial tear of the posterior inferior labrum at 8 o'clock. The earlier demand and negotiations preceded this recommendation. The additional surgery now leaves the updated damages assessment unresolved, and the client has not been able to give us a date.
☐ N21	10/19/2024	Discovery served both ways	Combined demands exchanged. We have served the bill of particulars and the authorizations; defendants have served their combined demands and a notice to produce. Nothing contentious yet on either side.
☐ N22	02/16/2025	Records production to defence	Produced the record set we hold: Montefiore Nyack, Capiola, Haggerty, Abramov, Kwan and the imaging. The maintenance treatment at SportsCare and Advanced Rockland is ongoing so those ledgers are produced to date only, and both will need refreshing before any deposition.
☐ N23	03/18/2025	Client is still out of work	Client remains out of work. Commission-only at Northwestern Mutual, so there is no salary continuation and nothing to offset. The wage claim rests on the 2022 1099 alone and we still do not have production records for the years since. This is the weakest documented part of the damages case.
☐ N24	04/22/2025	Two years on, still treating	Two-year review of the file. The client attends physical therapy once a week at SportsCare and chiropractic once a week at Advanced Rockland. He has not been discharged by anyone and no maximum medical improvement has been declared. Tramadol and ibuprofen as needed. The right shoulder arthroscopy Dr. Capiola recommended is still on the table with no date. The demand has already been sent and negotiations have taken place. The undated surgery still leaves the current damages assessment provisional.
☐ N25	06/12/2025	Discovery status	Defendants served a supplemental demand for authorizations covering the maintenance treatment. Our position is that the original HIPAA authorization already covers the same providers and that this is a second bite. Responding rather than motioning: the paper is cheaper than the fight.
☐ N26	07/23/2025	Medicaid lien	Lien unit acknowledges the file and states the asserted figure is unchanged at \$22,180.00. They will not re-audit until the case resolves, which is normal. Nothing to do here until we have a number to settle at.
☐ N27	08/27/2025	Deposition scheduling	Both sides are trying to schedule the client deposition. Defence counsel has asked for dates after the second shoulder surgery so they can examine on a completed treatment picture. That is convenient for them and not obviously wrong, but it hands the calendar to a surgery that has no date.

#	DATE	SUBJECT	DETAIL
☐ N28	10/24/2025	Capiola follow-up: surgery still recommended	Dr. Capiola re-examined the client and repeats the recommendation for a right shoulder arthroscopy. Same findings as the original MRI: labral and infraspinatus involvement. He will not schedule until the client stops deferring it. This is now the single item holding the case where it is.
☐ N29	12/08/2025	Specials tally, interim	Bills received from eight of ten providers. The chiropractic and physical therapy ledgers are still open because both are ongoing, so the specials figure moves every month. Current working total \$118,400.00, which is an interim number and should not be quoted anywhere as final.
☐ N30	01/12/2026	Case posture at the turn of the year	Where this file actually is: liability is contested on two independent levels and neither has been investigated. Scope of employment decides whether Metro-North is in the case at all, and everything about the value of this matter turns on that one question. Treatment is open, the second surgery is unscheduled, discovery is moving slowly, and the client is cooperative but slow to act on the surgery. No urgency from the other side.
☐ N31	03/06/2026	Compliance conference	Court set a further compliance conference. Outstanding on our side are the updated maintenance ledgers; outstanding on theirs is the Metro-North scope-of-employment disclosure and the Pullano deposition. Neither side is being obstructive, both sides are being slow.
☐ N32	06/04/2026	Case evaluation	Valuation: \$375,000. The economics alone come to \$332,400, and the second shoulder surgery is still recommended with no date, so the number moves if it happens. Recovery is capped well below that. The defendant carries \$100,000 per person, the client's own UM/UIM sits under it and adds nothing, and the Medicaid lien of \$22,180.00 comes off whatever we get. Exposures, frankly stated: - The client has given three inconsistent accounts of the mechanism. On a sideswipe with no police report, that is a credibility problem before it is a liability problem. - His own radiology reports a developmental glenoid variant in the same study that justified the surgery. - Day-after CT scans were clean; the TBI rests on imaging 107 days later. - Wage loss of \$214,000.00 rests on a single 1099 from 2022 with no expert behind it. He presents well and is genuinely disabled from commission work. But he is a witness who has to be prepared carefully, and the current evidence calls for care in updating our settlement position.

#	DATE	SUBJECT	DETAIL
☐ N33	07/04/2026	Right shoulder surgery still has no date	Third follow-up with Dr. Capiola's office on scheduling the right shoulder arthroscopy. Still no date. Client says he is willing to proceed whenever they call him. Until this is scheduled and performed, treatment cannot be said to be complete and the specials figure keeps moving.
☐ N34	08/03/2026	Demand history and current damages update	The demand package went out once the records were in and the lien position was known, and the adjuster opened negotiations on it a few weeks later. That exchange was overtaken by the right shoulder recommendation, the Presentation of Claim was served on Metro-North and the action is now in discovery. The current issue is updating the damages picture: the recommended right shoulder surgery remains undated, the chiropractic and PT ledgers are unreconciled, and two providers have not produced bills at all. Continue discovery and update the settlement assessment as treatment and billing evidence develops.
☐ N35	09/02/2026	Defence independent medical examinations attended	Client attended an orthopaedic IME with Dr. Emmanuel Hostin and a neurological IME with Dr. Jack W. Tsao, four days apart. An IME watchdog attended both. Watchdog reports the orthopaedic examination ran under fifteen minutes. Client refused to provide past medical history to either examiner, which we did not instruct and which will be reported. Expect both reports to make something of it.
☐ N36	09/06/2026	Discovery is stuck on the maintenance records	The authority has produced its responses and objected to the vehicle assignment and dispatch records as overbroad and not reasonably calculated to lead to admissible evidence. Those records are the case. Scope of employment decides whether Metro-North is in this action at all, and the assignment and dispatch history is the only contemporaneous record of whether Ferrara was on duty that morning. The incident report is a second problem: they say it is being searched for, which after this long means either it does not exist or nobody wants to find it. Asked for a compliance conference so both sets of outstanding items get dealt with in one appearance.

#	DATE	SUBJECT	DETAIL
☐ N37	09/09/2026	Coverage confirmed in writing	Coverage confirmed in writing by the adjuster, so the policy limits field comes off unconfirmed. Defendant liability \$100,000 per person / \$300,000 per occurrence. The client's own UM/UIM is \$25,000 / \$50,000, below the defendant's limits, so it does not add anything here. No-fault was \$50,000 and is exhausted. Practical read: recovery is capped at \$100,000 unless the case reaches a second defendant, and the Medicaid lien of \$22,180.00 comes off whatever we get.
☐ N38	09/13/2026	Both defence examinations attended, reports now served	Both defence reports have now been served. Dr. Hostin's orthopaedic report records a normal range of motion assessment and makes the point we expected about the client declining to give a past medical history. Dr. Tsao's neurological examination has produced an expert disclosure. Dr. Katzman's radiology review followed a few days later and has been saved to the file.

#	DATE	SUBJECT	DETAIL
☐ N39	09/15/2026	Case posture, and what is still not done	Read this before the next discovery conference. Liability is contested on two independent levels and neither has been investigated. First, mechanism. A sideswipe between two vehicles in adjacent merging lanes carries no presumption of fault in either direction, unlike a rear-ender. The client has given three inconsistent accounts: his claim paperwork has the Metro-North vehicle merging into his lane and striking him, he has separately described his own vehicle striking the other as both merged, and he has separately described being sideswiped by a truck and striking the sidewalk. There is no police accident report in the file. He says he has twenty-two scene photographs and we have obtained none of them. Second, scope of employment, and this is the whole case. Ferrara was pulling into a Metro-North facility at half past eight in the morning, in a Metro-North vehicle with Metro-North badging. If he was on a break rather than on duty, vicarious liability fails and all that is left against the authority is negligent entrustment. Kyle Pullano, a Metro-North employee, has been identified as the person who can answer this. Nobody has contacted him. Anticipate comparative negligence, assumption of risk and a seatbelt defence. On prior injuries: at intake he answered none. The records he handed over include left ankle and left foot X-rays dated 5 October 2011, Kenneth Blumberg M.D., impression small dorsal avulsion fracture of the anterior talus, and a chest X-ray dated 10 September 2018. He has separately complained of left ankle pain from this accident, and no left ankle injury has been claimed anywhere. Three inconsistent positions on one ankle, all of them ours. Resolve before the next settlement discussion and before his deposition. Separately, not a prior injury but a causation exposure: the left shoulder MRI reports hypoplasia of the posterior inferior glenoid, a developmental variant, in the same study that supported the surgery.
☐ N40	09/18/2026	The second surgery is now the biggest open question on this file	Five approaches to McCulloch Orthopaedic for a date for the recommended right shoulder arthroscopy and there is still no date. The latest answer is that Dr. Capiola wants to see the patient again before scheduling. This is not an administrative problem, it is a valuation problem. A recommended and undated second surgery is worth far less than a performed one, and the defence will say it was never needed if it never happens. Meanwhile the client is still in physical therapy twice a week and asking us when it will be done.

#	DATE	SUBJECT	DETAIL
☐ N41	09/25/2026	Specials cannot be closed while two ledgers are unreconciled	The running figure of \$118,400.00 stands, and the two largest components remain the two least certain: the chiropractic and physical therapy ledgers have never been reconciled line by line against the CPT codes. Updated ledger requested from Advanced Rockland. SportsCare has not been asked since the last production and should be. Until both are in, any number we give the authority is a number we may have to correct, which is the worst position to negotiate from.
☐ N42	09/27/2026	Client call: treatment status	Justin called. Asks whether he should keep attending physical therapy while the case is pending. Advised yes, keep going, and to keep his own record of every visit. Confirms the right shoulder surgery still has no date. Says he is otherwise fine and will send updated employment records "soon". Nothing further.

STEP 6b Communications (69)

Matter → **Communications** → log an **email** or a **phone call** as shown, with the date, from, to, subject and body.

#	DATE	TYPE	FROM → TO	SUBJECT	BODY
☐ M1	05/07/2023	Email	Justin Sapini → You (firm user)	Photographs of my paperwork	Hi, as discussed this morning, attached are photos of everything I have: the exchange of information sheet, the paperwork from the hospital, and the forms from the other side. I also have 22 photos from the scene on my phone if those are useful. Justin
☐ M2	05/08/2023	Email	You (firm user) → Justin Sapini	Retainer agreement and HIPAA authorization	Justin, thank you for coming in. Attached are the retainer agreement and the HIPAA authorization. Please sign and return both and we will get the provider record requests moving. Once we have those we can start putting a value on the medical side.
☐ M3	05/11/2023	Phone	You (firm user) → Justin Sapini	Intake follow-up: employment and treatment	Called the client to confirm the treatment list and his employment position. Confirms he is commission only at Northwestern Mutual and has been out of work since the loss. Will look out his 2022 1099. Confirms he is seeing Haggerty and Dr. Capiola and has imaging booked.
☐ M4	05/14/2023	Email	Justin Sapini → You (firm user)	Signed retainer and HIPAA returned	Both signed and attached. Let me know what else you need from me. Justin
☐ M5	05/15/2023	Email	You (firm user) → Claims Service Bureau	Letter of representation, claim SIR068120	Please be advised that this firm represents Justin W. Sapini in connection with the motor vehicle collision of record involving a Metro-North Commuter Railroad vehicle operated by Anthony F. Ferrara. All further communication should be directed to this office. Please confirm the claim number and the identity of the adjuster assigned.
☐ M6	05/22/2023	Email	Claims Service Bureau → You (firm user)	RE: Letter of representation, claim SIR068120	Receipt acknowledged. This file is administered by Claims Service Bureau on behalf of Metro-North Commuter Railroad under claim SIR068120. Please forward a HIPAA authorization so we may obtain the medical records.
☐ M7	06/02/2023	Email	You (firm user) → Claims Service Bureau	HIPAA authorization, claim SIR068120	Attached as requested. Please confirm receipt and advise the name of the adjuster handling.
☐ M8	06/22/2023	Email	You (firm user) → McCulloch Orthopaedic Surgical Services, PLLC	Records request: Justin Sapini, Dr. Capiola file	Please provide the complete file for Justin W. Sapini (DOB 12/21/1995), including all office notes, referrals, imaging reports and itemised billing. A signed HIPAA authorization is attached.

#	DATE	TYPE	FROM → TO	SUBJECT	BODY
☐ M9	06/28/2023	Email	You (firm user) → Advanced Rockland Chiropractic Offices, P.C.	Records request: Justin Sapini, chiropractic file	Please provide the complete chiropractic file for Justin W. Sapini, including the initial narrative, all daily notes, re-examinations, work status reports and an itemised ledger. HIPAA authorization attached.
☐ M10	07/04/2023	Email	You (firm user) → SportsCare Physical Therapy of New York	Records request: Justin Sapini, physical therapy file	Please provide the complete physical therapy file for Justin W. Sapini including the initial evaluation, daily notes and itemised billing. HIPAA authorization attached.
☐ M11	07/12/2023	Phone	You (firm user) → McCulloch Orthopaedic Surgical Services, PLLC	Pre-operative scheduling, left shoulder	Spoke with Dr. Capiola's scheduler. Left shoulder arthroscopy to be performed at New Horizon Surgical Center. Pre-operative consultation confirmed for DOI + 80.
☐ M12	07/20/2023	Email	McCulloch Orthopaedic Surgical Services, PLLC → You (firm user)	Surgical date confirmed, left shoulder	Confirming the left shoulder arthroscopy for Mr. Sapini, to be performed by Dr. Capiola at New Horizon Surgical Center, Paterson NJ. Pre-operative clearance is complete.
☐ M13	07/27/2023	Email	You (firm user) → Montefiore Nyack Hospital	Records request: emergency department chart	Please provide the complete emergency department record for Justin W. Sapini for his presentation on the day after the collision, including the CT head and CT cervical spine reports and the itemised charges. HIPAA authorization attached.
☐ M14	07/28/2023	Phone	You (firm user) → Justin Sapini	Post-surgery check-in with client	Called the client two days after the arthroscopy. Reports significant pain, in a sling, follow-up booked. Reminded him to keep every discharge instruction and receipt.
☐ M15	08/01/2023	Email	You (firm user) → McCulloch Orthopaedic Surgical Services, PLLC	Request: operative report, left shoulder	Please provide the operative report and anaesthesia record for the left shoulder arthroscopy performed on the above patient, together with the surgical facility billing.
☐ M16	08/11/2023	Email	McCulloch Orthopaedic Surgical Services, PLLC → You (firm user)	Operative report enclosed	Attached is the operative report as requested. Facility billing is issued separately by New Horizon Surgical Center.
☐ M17	08/21/2023	Email	Montefiore Nyack Hospital → You (firm user)	Invoice for medical records, account 4471-SAPINI	We are in receipt of your request. Records will be released on payment of the enclosed invoice for reproduction costs. Please remit before we can process.
☐ M18	08/31/2023	Email	McCulloch Orthopaedic Surgical Services, PLLC → You (firm user)	Records enclosed: Sapini, orthopaedic file and operative report	Attached is the complete orthopaedic file for the above patient, including the operative report for the left shoulder arthroscopy. Billing will follow separately.

#	DATE	TYPE	FROM → TO	SUBJECT	BODY
☐ M19	10/20/2023	Email	Advanced Rockland Chiropractic Offices, P.C. → You (firm user)	Records enclosed: Sapini, chiropractic file	Please find the chiropractic file attached: initial narrative, daily notes, re-examinations and work status reports. Itemised ledger to follow.
☐ M20	11/19/2023	Email	SportsCare Physical Therapy of New York → You (firm user)	Records enclosed: Sapini, physical therapy file	Attached please find the physical therapy records for Justin Sapini through the date of this letter.
☐ M21	12/19/2023	Email	Progressive Insurance Company → You (firm user)	No-fault benefits exhausted, claim 22-4471102	Please be advised that the \$50,000 basic economic loss coverage under the above policy has been exhausted. No further first-party benefits are payable. A payment ledger is available on request.
☐ M22	12/29/2023	Email	You (firm user) → Progressive Insurance Company	Request for no-fault payment ledger	Please forward the complete payment ledger for this claim, showing all providers paid, dates of service and amounts, so we can reconcile against the treatment records.
☐ M23	01/13/2024	Email	Progressive Insurance Company → You (firm user)	No-fault payment ledger enclosed	Attached is the requested ledger for claim 22-4471102 showing payments to date and the point of exhaustion.
☐ M24	02/17/2024	Email	You (firm user) → Justin Sapini	Medicaid coverage and what a lien means	Justin, now that the no-fault benefits are exhausted your treatment is billing through Medicaid. Medicaid will assert a lien against any recovery, which means part of what comes in is repaid to them. We will negotiate that at the end. Nothing changes about your treatment: keep going.
☐ M25	03/28/2024	Email	You (firm user) → Justin Sapini	Social Security Disability filing acknowledged	Confirming the SSD claim has been filed and acknowledged, currently pending. Please forward anything you receive from SSA without opening a response yourself so we can review it first.
☐ M26	04/07/2024	Email	You (firm user) → Advanced Rockland Chiropractic Offices, P.C.	Updated records and itemised bill to date	Please provide updated daily notes for Mr. Sapini from your last production to date, together with an itemised bill showing CPT codes and amounts.
☐ M27	04/12/2024	Email	You (firm user) → Claims Service Bureau	Demand package, claim SIR068120	Enclosed please find our demand package on behalf of Justin Sapini, comprising the medical records and bills received to date, the imaging reports, the operative report for the left shoulder arthroscopy and the wage documentation. The chiropractic and physical therapy ledgers remain open and those figures are subject to revision on production.

#	DATE	TYPE	FROM → TO	SUBJECT	BODY
☐ M28	05/27/2024	Email	You (firm user) → SportsCare Physical Therapy of New York	Request for updated treatment notes	Please provide all treatment notes for Mr. Sapini from your last production to date. He advises he continues to attend weekly.
☐ M29	08/15/2024	Email	Advanced Rockland Chiropractic Offices, P.C. → You (firm user)	Updated chiropractic notes enclosed	Attached are the updated notes through the date of this letter. The itemised ledger is being prepared and will follow.
☐ M30	10/07/2024	Phone	You (firm user) → Justin Sapini	Post-operative check-in with the client	Called the client. Left shoulder is better than before the surgery but not right. He is doing physical therapy twice a week and says the right shoulder now bothers him more than the left. Told him to raise it with Dr. Capiola specifically rather than mentioning it in passing.
☐ M31	11/18/2024	Email	Claims Service Bureau → You (firm user)	Notice to produce and combined demands	Please find enclosed defendants notice to produce and combined discovery demands, including authorizations for all treating providers, employment records and collateral source information.
☐ M32	01/10/2025	Email	Progressive Insurance Company → You (firm user)	No-fault benefits exhausted	This is to advise that basic economic loss benefits under the policy have been exhausted in the amount of \$50,000.00. No further no-fault payments will issue on this claim.
☐ M33	03/01/2025	Email	You (firm user) → Justin Sapini	Medicaid lien notice	Justin, New York State Medicaid has asserted a lien against any recovery in this case in the amount of \$22,180.00. Nothing needs doing now. It comes off the top when the case resolves and we will negotiate it down at that point, which is normal and expected.
☐ M34	04/08/2025	Email	Justin Sapini → You (firm user)	Checking in: still going to therapy	Hi, just letting you know I am still going to physical therapy on Tuesdays and the chiropractor on Thursdays. The shoulder is about the same. Nobody has said anything about the surgery yet. Let me know if you need anything from me.
☐ M35	05/07/2025	Email	You (firm user) → SportsCare Physical Therapy of New York	Records request: updated physical therapy ledger	Please provide an updated itemised ledger and progress notes for this patient from the date of your last production to the present. Treatment is ongoing so we will need to refresh this periodically. Authorization is on file.
☐ M36	05/24/2025	Phone	You (firm user) → Claims Service Bureau	Call to Claims Service Bureau re scope of employment	Asked whether Metro-North accepts that Mr. Ferrara was acting within the scope of his employment at the time of the collision. Adjuster would not take a position on the call and referred the question to counsel. Noted.

#	DATE	TYPE	FROM → TO	SUBJECT	BODY
☐ M37	07/09/2025	Phone	Justin Sapini → You (firm user)	Call from the client re the second surgery	Client called. He has not scheduled the right shoulder arthroscopy. He says he cannot afford to be out of work again, that commissions dried up after the first surgery and he is still catching up. Explained that the longer it sits undone the harder it is to value, and that a gap will be used against him.
☐ M38	08/10/2025	Email	You (firm user) → Advanced Rockland Chiropractic Offices, P.C.	Records request: updated chiropractic ledger	Please provide an updated itemised billing ledger and treatment notes from the date of your last production to the present. Treatment is ongoing weekly.
☐ M39	09/14/2025	Email	You (firm user) → Justin Sapini	Social Security Disability claim status	Following up on the SSD claim. Please forward anything you have received from Social Security, including denials. It matters here because the defendants have pleaded a collateral source offset and we need to know what is actually in payment.
☐ M40	10/09/2025	Phone	You (firm user) → Justin Sapini	Client check-in	Routine check-in. Treatment unchanged, PT once a week and chiropractic once a week. No new symptoms. Reminded him about the surgery decision. He will speak to Dr. Capiola.
☐ M41	11/13/2025	Email	Claims Service Bureau → You (firm user)	Defendants supplemental demand for authorizations	Enclosed please find defendants supplemental combined demands, including authorizations for the plaintiff continuing physical therapy and chiropractic treatment and for any provider not previously identified.
☐ M42	12/06/2025	Email	You (firm user) → Montefiore Nyack Hospital	Second request: itemised bill, account 4471-SAPINI	Further to our payment of the reproduction invoice, we still require the itemised charge detail for the emergency department attendance. Please forward at your earliest convenience.
☐ M43	12/23/2025	Email	You (firm user) → Justin Sapini	Year-end check-in	Justin, checking in before the holidays. Nothing needs doing from you right now other than the surgery decision. When you are ready to schedule it, tell us first so we can get the operative report and the bills as they come rather than chasing them a year later.
☐ M44	01/29/2026	Email	Claims Service Bureau → You (firm user)	Compliance conference date	Court has scheduled a further compliance conference. Please confirm your availability and advise on the status of the outstanding maintenance treatment records.
☐ M45	02/16/2026	Phone	You (firm user) → Justin Sapini	Call to the client ahead of the conference	Explained what a compliance conference is and that he does not need to attend. Asked again about the surgery. He says he has an appointment with Dr. Capiola but has not confirmed a surgical date.

#	DATE	TYPE	FROM → TO	SUBJECT	BODY
☐ M46	03/23/2026	Email	You (firm user) → SportsCare Physical Therapy of New York	Records chaser: physical therapy	Second request. We still do not have the updated ledger and notes for this patient. The court has now asked about these records specifically, so please treat this as urgent.
☐ M47	05/05/2026	Email	You (firm user) → SportsCare Physical Therapy of New York	Third request: updated treatment notes	We have written twice for updated notes without response. Mr. Sapini confirms he continues to attend weekly. Please advise whether there is an outstanding balance holding up production.
☐ M48	05/05/2026	Email	You (firm user) → McCulloch Orthopaedic Surgical Services, PLLC	Right shoulder arthroscopy: requesting a date	Dr. Capiola has recommended a right shoulder arthroscopy for Mr. Sapini. Please advise the proposed surgical date so we can plan around it.
☐ M49	06/14/2026	Phone	You (firm user) → McCulloch Orthopaedic Surgical Services, PLLC	Call to scheduling re right shoulder date	Called the surgical scheduler. Told the date depends on Dr. Capiola's block time and they would call back. No call back received.
☐ M50	07/04/2026	Email	You (firm user) → McCulloch Orthopaedic Surgical Services, PLLC	Second request: right shoulder surgical date	Following up again on a date for the right shoulder arthroscopy. The client is available at short notice and is willing to travel to whichever facility has capacity.
☐ M51	08/03/2026	Email	You (firm user) → McCulloch Orthopaedic Surgical Services, PLLC	Third request: right shoulder surgical date	This is our third written request for a surgical date. Please advise whether the procedure is still recommended, and if so when it is likely to be scheduled. We cannot finalise our client's claim while it is outstanding.
☐ M52	08/03/2026	Email	Claims Service Bureau → You (firm user)	IME notice: orthopaedic examination	Notice of an independent orthopaedic examination of Mr. Sapini by Dr. Emmanuel Hostin. Please confirm the client's attendance.
☐ M53	08/18/2026	Email	Claims Service Bureau → You (firm user)	IME notice: neurological examination	Notice of an independent neurological examination of Mr. Sapini by Dr. Jack W. Tsao. Please confirm attendance.
☐ M54	08/23/2026	Email	Claims Service Bureau → You (firm user)	Claim SIR068120: file review	This file has been reviewed. We confirm representation is noted and the HIPAA authorization is on file. Please forward medical records and any updated treatment information as it becomes available. We will revert in due course.
☐ M55	09/05/2026	Email	You (firm user) → Claims Service Bureau	Discovery status and outstanding demands	Our responses to your demands were served some time ago. Your client has still not produced the incident report or the vehicle assignment and dispatch records for the morning of the collision, both of which were demanded and neither of which appears in your response.

#	DATE	TYPE	FROM → TO	SUBJECT	BODY
☐ M56	09/07/2026	Phone	You (firm user) → Justin Sapini	IME watchdog booking confirmed	Booked an IME watchdog to attend both examinations with the client and confirmed the appointment times with him. Reminded him to answer questions about this accident and to bring nothing with him.
☐ M57	09/08/2026	Email	Claims Service Bureau → You (firm user)	RE: Discovery status and outstanding demands	Confirming the coverage position on this file. The bodily injury liability limits are \$100,000 per person and \$300,000 per occurrence. No excess or umbrella coverage is disclosed.
☐ M58	09/08/2026	Email	Claims Service Bureau → You (firm user)	RE: Coverage confirmation, claim SIR068120	Confirming the coverage position on this file. The bodily injury liability limits are \$100,000 per person and \$300,000 per occurrence. No excess or umbrella coverage is disclosed.
☐ M59	09/10/2026	Email	You (firm user) → Claims Service Bureau	Compliance conference: proposed dates	Please advise your availability for a compliance conference. The outstanding items on both sides are now capable of being listed and dealt with in one appearance.
☐ M60	09/12/2026	Phone	You (firm user) → Justin Sapini	Client call: the IME examinations	Went through both examinations with him. He attended each, the watchdog attended the orthopaedic one, and he says the neurological examination lasted under ten minutes. Told him to expect the reports to be unhelpful and why that is normal.
☐ M61	09/14/2026	Email	Claims Service Bureau → You (firm user)	IME report served: orthopaedic examination	Enclosed please find the report of Dr. Emmanuel Hostin following his orthopaedic examination of the plaintiff, served pursuant to the rules.
☐ M62	09/17/2026	Email	You (firm user) → McCulloch Orthopaedic Surgical Services, PLLC	Chaser: right shoulder surgical date	This is now the fifth approach on this point. The recommended right shoulder arthroscopy has no date, the patient is asking us, and the damages cannot be closed while the second surgery is an open question.
☐ M63	09/20/2026	Email	Claims Service Bureau → You (firm user)	Expert exchange served: neurology	Enclosed is the expert disclosure of Dr. Jack W. Tsao in respect of the neurological examination, served in accordance with the demand for expert information.
☐ M64	09/21/2026	Email	You (firm user) → Justin Sapini	Updated employment and commission records	Justin, we still need your commission statements for the years after 2022 and anything from Northwestern Mutual confirming your production before the accident. This is the single biggest number in your claim and right now it rests on one document. Can you send what you have this week?
☐ M65	09/22/2026	Email	Claims Service Bureau → You (firm user)	Radiology review served	Enclosed is the radiological review of Dr. Katzman, M.D., exchanged pursuant to CPLR 3101(d).

#	DATE	TYPE	FROM → TO	SUBJECT	BODY
☐ M66	09/24/2026	Email	McCulloch Orthopaedic Surgical Services, PLLC → You (firm user)	RE: Chaser: right shoulder surgical date	Dr. Capiola will see the patient again before scheduling. The office will call with a date once that visit has taken place. No date can be given in the meantime.
☐ M67	09/25/2026	Phone	You (firm user) → Justin Sapini	Call to the client re the second surgery	He asked again when the right shoulder will be done. Explained that the surgeon wants to see him first and that we have asked five times. He is still going to physical therapy twice a week.
☐ M68	09/26/2026	Email	You (firm user) → Advanced Rockland Chiropractic Offices, P.C.	Updated ledger request: chiropractic	Please provide the itemised ledger to date with CPT codes. The running figure we hold has not been reconciled against your billing and the specials schedule cannot be closed without it.
☐ M69	09/27/2026	Phone	You (firm user) → Justin Sapini	Client call: should he keep going to PT	Justin called to ask whether he should keep attending physical therapy while the case is pending. Told him yes and to keep his own note of each visit. He confirms the right shoulder surgery still has no date. No other questions.

STEP 6c Tasks (14)

Matter → **Tasks** → New task, assigned to you. Mark the completed ones complete after creating them. Task names starting "**By medical provider:**" must keep that prefix exactly.

#	TASK NAME	DUE DATE	STATUS	DESCRIPTION
☐ T1	Limitations Date Statute of limitations task. Clio may create it for you from the matter's limitations date; if so, just mark it complete.	04/22/2026	Complete	Three-year statute of limitations, and the shortened period applicable to a claim against a public benefit corporation. Satisfied: the notice of claim was served and suit commenced within time. Retained on the matter for the record.
☐ T2	By medical provider: McCulloch Orthopaedic Surgical Services, PLLC - Updated records and right shoulder surgical date	08/25/2026	Pending	Updated office notes since the last production, and a confirmed date for the recommended right shoulder arthroscopy. Three written requests, no date given.
☐ T3	By medical provider: Advanced Rockland Chiropractic Offices, P.C. - Current daily notes and itemised bill to date	10/07/2026	Pending	Notes since the last production plus the itemised ledger with CPT codes, needed to close out the specials figure.
☐ T4	By medical provider: SportsCare Physical Therapy of New York - Ongoing treatment notes	10/14/2026	Pending	Treatment notes from the last production to date. Two requests unanswered.
☐ T5	Reconcile chiropractic and PT ledgers against CPT lines	10/05/2026	Pending	The two largest components of the specials figure are the two least certain until the ledgers are reconciled line by line.
☐ T6	Obtain updated employment and commission records from client	09/26/2026	Pending	Wage loss of \$214,000.00 currently rests on a single 2022 1099. Need commission statements for the following years.
☐ T7	Confirm date of right shoulder arthroscopy with Dr. Capiola's office	10/10/2026	Pending	Confirm whether and when the recommended surgery will take place so the damages assessment can be updated during litigation.
☐ T8	Pay Montefiore Nyack records invoice and re-request	11/09/2023	Complete	Hospital required payment of reproduction costs before releasing the emergency department chart.
☐ T9	Request operative report, left shoulder	08/01/2023	Complete	Operative report and anaesthesia record for the arthroscopy at New Horizon Surgical Center.
☐ T10	Serve letter of representation on Claims Service Bureau	05/14/2023	Complete	Claim SIR068120, administered on behalf of Metro-North Commuter Railroad.

#	TASK NAME	DUE DATE	STATUS	DESCRIPTION
☐ T11	Catalogue client's own document stack	06/02/2023	Complete	Photographs of paperwork provided at intake, including prior X-ray reports the client did not disclose.
☐ T12	Attend orthopedic IME with client	09/02/2026	Complete	Dr. Emmanuel Hostin. IME watchdog attended.
☐ T13	Attend neurological IME with client	09/07/2026	Complete	Dr. Jack W. Tsao. IME watchdog attended.
☐ T14	File Medicaid lien acknowledgment	03/28/2024	Complete	New York State Medicaid lien asserted at \$22,180.00.

STEP 6d Calendar entries (17)

Matter → **Calendar** → New event on your calendar, linked to the matter.

#	TITLE	DATE	TIME	DESCRIPTION
☐ E1	Initial client consultation, Justin Sapini	05/07/2023	10:00 AM – 10:45 AM	Intake meeting. Retainer and HIPAA signed.
☐ E2	Pre-operative consultation, Dr. Capiola	07/12/2023	9:30 AM – 10:30 AM	Left shoulder, ahead of the arthroscopy at New Horizon Surgical Center.
☐ E3	Left shoulder arthroscopy, New Horizon Surgical Center	07/26/2023	7:30 AM – 11:30 AM	Posterior labral repair, synovectomy, lysis of adhesions, subacromial decompression, debridement. Dr. David Capiola.
☐ E4	Post-operative follow-up, Dr. Capiola	08/31/2023	11:00 AM – 11:45 AM	Left shoulder, first post-operative review.
☐ E5	Consultation re second surgery, right shoulder	05/27/2024	2:00 PM – 2:45 PM	Dr. Capiola recommends a right shoulder arthroscopy.
☐ E6	Compliance conference	04/15/2025	10:00 AM – 10:45 AM	Outstanding on our side are the updated maintenance ledgers; outstanding on theirs is the Metro-North scope-of-employment disclosure.
☐ E7	Client appointment: treatment and surgery decision	10/09/2025	2:00 PM – 2:30 PM	Reviewed the ongoing PT and chiropractic and pressed again on scheduling the right shoulder arthroscopy.
☐ E8	LIMITATIONS DATE: Sapini	04/22/2026	9:00 AM – 9:30 AM	Three-year statute of limitations expires. Note that a Presentation of Claim on Metro-North under Public Authorities Law 1276(1) must precede suit, with thirty days elapsing.
☐ E9	Orthopedic IME, Dr. Emmanuel Hostin	09/02/2026	1:00 PM – 2:30 PM	Defence independent medical examination. IME watchdog attending.
☐ E10	Neurological IME, Dr. Jack W. Tsao	09/07/2026	10:00 AM – 11:30 AM	Defence independent neurological examination. IME watchdog attending.

#	TITLE	DATE	TIME	DESCRIPTION
☐ E11	Client treatment: chiropractic, Advanced Rockland Chiropractic Offices, P.C.	10/09/2026	5:30 PM – 6:00 PM	Weekly chiropractic session with Kevin M. Haggerty, D.C. Client attending.
☐ E12	Client treatment: physical therapy, SportsCare Physical Therapy of New York	10/10/2026	9:00 AM – 9:45 AM	Weekly physical therapy session. Client attending; confirm attendance on the updated treatment notes SportsCare owes us.
☐ E13	Call to McCulloch Orthopaedic re right shoulder surgical date	10/10/2026	10:30 AM – 10:45 AM	Fourth attempt. Three written requests and one call have produced no date for the recommended right shoulder arthroscopy, and the specials cannot be closed without it.
☐ E14	Follow-up call with client re treatment status	10/14/2026	3:00 PM – 3:30 PM	Check whether the right shoulder surgery has been scheduled and chase employment records.
☐ E15	Client treatment: physical therapy (following week), SportsCare Physical Therapy of New York	10/17/2026	9:00 AM – 9:45 AM	Weekly physical therapy session, following week.
☐ E16	File review: compliance conference and the second surgery	10/21/2026	3:00 PM – 4:00 PM	Two decisions. Whether to move to compel the vehicle assignment and dispatch records after the objection, and whether to value this case with the right shoulder surgery as recommended-but-undated or wait for a date that may never come.
☐ E17	Client appointment: updated employment and commission records	10/29/2026	11:00 AM – 11:45 AM	Collect the current commission statements to bring the wage loss claim up to date.

STEP 6e Expenses (5)

Matter → **Activities** → New **expense**. Quantity 1, no tax, the amount as the price, and the note pasted exactly as shown.

#	DATE	AMOUNT	NOTE (PASTE EXACTLY)
☐ X1	08/31/2023	\$65.00	Records reproduction: McCulloch Orthopaedic records copy, including the left shoulder operative report. Paid by the firm in USD; not yet reimbursed. Case expense, not patient treatment charges.
☐ X2	11/09/2023	\$85.00	Records reproduction: Montefiore Nyack emergency department chart reproduction. Paid by the firm in USD; not yet reimbursed. Case expense, not patient treatment charges.
☐ X3	11/29/2023	\$450.00	Records reproduction: Reproduction and imaging copy charges for the remaining treating providers and the ten imaging studies. Paid by the firm in USD; not yet reimbursed. Case expense, not patient treatment charges.
☐ X4	07/21/2024	\$210.00	Court filing: Summons and complaint filing, New York County index 160000/2024. Paid by the firm in USD; not yet reimbursed. Case expense, not patient treatment charges.
☐ X5	09/03/2026	\$600.00	IME observer: Observer attendance at the two completed defence medical examinations; this is the plaintiff firm observer cost, not payment for the defence reports. Paid by the firm in USD; not yet reimbursed. Case expense, not patient treatment charges.